

?. ????????? ??? ? ?????????: (?) ?? ????? ??? ?????????? ????????? ????????? ??? ??, ?????? ?????? ? ? 1.

Short Title and Commencement: (1) This Act may be called the "National Nature Conservation Fund Act, 2039 (1982)".

(?) ?? ?? ??????? ??????? ????? ? (2) This Act shall come into force immediately.

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2.

Definition: Unless the subject or context otherwise requires, in this Act,? (?) ????? ??????? ??? ? ?????? ??????? ???? ?????????? ??????? ??????? ??? ?????? ???? ? (a) "Fund" means the National Nature Conservation Fund established pursuant to Section 3. (?) ??????? ??????? ??? ? ?????? ??? ????? ??????? ?????? ?????? ???? ? (b) "Committee" means the Governing Committee constituted pursuant to Section 5. (?) ?????????? ??????? ?????? ??????? ??????? ???? ? (c) "Chairperson" means the Chairperson of the Fund. (?) ?????? ? ??????-????? ??????? ?????? ?????? ?????? ???? ? (d) "Member and Member-Secretary" means a Member of the Fund. (?) ?????????? ?? ?????? ??????? ??????? ?? ?? ?????????? ?????? ?????????? ??????? ?? ?????? ?????? ??????? ???? ? (e) "Prescribed" or "as prescribed" means prescribed or as prescribed in the Regulations made under this Act. ?. ?????? ??????: (?) ?????????? ??????? ??????? ??? ?????? ?? ??? ??????? ?????? ? 3. Establishment of the Fund: (1) A Fund named the National Nature Conservation Fund shall be established. (?) ??? ?????????? ?????????????????? ?? ????????? ? ?????? ?????? ?????? ? (2) The Fund shall be an autonomous and incorporated body with perpetual succession. (?) ?????? ??? ??? ?????????? ??????? ?????? ?????? ??? ?????? ? (3) The Fund shall have its own separate seal for all its business. (?) ?????? ??????? ??? ?? ??? ?????????? ??????? ?????, ?????? ?????, ??????? ??? ?? ??? ?????????? ?????????? ?????? ?????? ? (4) The Fund may, like a person, acquire, use, sell or otherwise dispose of movable and immovable property. (?) ?????? ??????? ??? ?????? ?????? ???? ? ??? ??? ??? ?????? ?????? ?????? ?????? ?????? ?????? ? (5) The Fund may, like a person, sue and be sued in its own name. ?. ??????: ???? ?????? ?????? ?????? ?????? ??, ???? ?????? ??????? ? ?????????????? ?????? ??????? ?????? ? 4. Patron: Amended by Some Nepal Laws Amendment Act, 2063 (2006). The Prime Minister shall be the Patron of the Fund. ?. ??????? ??????? ??? : ?????? ?????????? ?????? ?????????? ?????????? ?????? ?????? ?????? ?????? ?????? ?????? ?????? ???? ?????? :- 5.

Constitution of Governing Committee: For the conduct and supervision of all businesses of the Fund, a Governing Committee shall be constituted as follows: (?) ?????????? ??????? ??????? ?????? ?????????? (a) One person nominated by the Patron ? Chairperson (?) ?????????? ??????? ?????? ?????????? ?????????? ??????? ??????? (b) Three persons from among the Secretaries of the Government of Nepal nominated by the Chairperson ? Members (?) ?????????? ??????? ?????? ??????? ?????? ?? ??????? ?? ?????????? ?????????? ?????????????????????????? ??????? ??????? (c) Three persons from among the representatives of departments of the Government of Nepal or government or non-government organisations nominated by the Chairperson ? Members (?) ?????????? ??????? ?????????????????? ?????????????????? ?? ?????????????????? ??????? ?????????? ?????????????????????????? ??????? ??????? (d) Four persons from among the representatives of international organisations or persons of international repute nominated by the Chairperson ? Members (?) ?????????? ??????? ?????? ???? ?????????? ??????? ?????????????? ??????? ??????? (e) Three persons deemed suitable for the Fund nominated by the Chairperson ? Members (?) ?????????? ??????? ?????????? ?????? ??????-???? (f) One person nominated by the Chairperson ? Member-Secretary ?. ??????: (?) ??????? ??? ?????????? ??????? ?????? ?????? ?????? ? 6. Term of Office: (1) The term of office of the Chairperson and Members shall be five years. (?) ??????? ??? ??????? ??????? ??????? ?????? ??????? ??? ? ?????? ??? ???? ???? ???? ?????????? ? (2) After the expiry of the term of office, the Chairperson and Members may be re-nominated in accordance with Section 5. (?) ??????? ??????? ??????? ????????? ??

(?) ????????? ??? ???? ????????? ????????? ????????? ?????? ??? ?????????? ?????? ? (c) To conduct scientific study and research on wildlife and other natural heritage.

??, ?????? ??????: ?????? ?????? ?????? ?????? ?????? :-

10.

Powers of the Fund: The powers of the Fund shall be as follows:

(?) ?????????? ?? ?????????????????? ???, ?????? ??? ?????? ?????????????? ?????, ?????? ?? ?????? ?????????? ?????????? ?????????? ?????? ? (a) To obtain assistance in cash, kind or other form from national or international associations, organisations and other sectors.

(?) ?????????? ??? ?????? ?????????????? ?????????????? ?????????? ?????????? ? ?????????????????????? ??? ?????????? ?????????? ?????????? ? (b) To maintain contact with foreign organisations and international associations and organisations relating to wildlife and other natural heritage.

(?) ?????? ?????? ?? ?????????????????????? ??? ?????? ?????? ?????? ?????? ?????? ?????? ?????? ? (c) To collect or cause to collect donations through foreign organisations or international associations and organisations.

(?) ?????? ?????? ?????? ?????? ?????? ??? ?????? ? (d) To do other necessary work for the benefit of the Fund.

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(?) ?????????????? ???, ?????????? ? ?????????? ?????? ?????????? ?????? ? (2) The functions, duties and powers of a sub-committee shall be as prescribed.

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12. Fund: (1) The following amounts shall be in the Fund:

(?) ?????? ?????????? ?????????? ?????? ???,

(a) Amount provided by the Government of Nepal,

(?) ?????????????? ?? ?????????????????????? ??? ?????????????? ?????????? ???,

(b) Amount received from national or international associations and organisations,

(?) ?????? ?????????????? ?????????? ??? ? (c) Amount received from other sources.

(?) ?????? ??? ??? ?????? ?????????? ?????? ?? ?????? ?????? ?????????? ?????? ?????????? ?????? ?????????? ? (2) All amounts of the Fund shall be deposited in the Nepal Rastra Bank or any other bank in the name of the Fund.

(?) ?????????? ?????????? ?????????? ?????? ?????????? ?????????? ? (3) A separate account of income and expenditure in kind shall be maintained.

(?) ?????? ?????????? ?????? ?????? ??? ?????? ?????????? ?????????????????? ? (4) All expenses to be incurred on behalf of the Fund shall be borne by the Fund.

(?) ?????? ?????? ?????????? ?????? ?????????? ?????? ? (5) The operation of the account of the Fund shall be as prescribed.

??, ??? ? ??????????????????: (?) ?????? ??-????????? ?????? ?????? ?????????? ?????????? ? 13.

Accounts and Audit: (1) The accounts of income and expenditure of the Fund shall be kept as prescribed.

(?) ?????? ?????????????????? ?????????????????????? ?????????? ?????? ? (2) The audit of the Fund shall be conducted by the Office of the Auditor General.

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